



U.S. Department
of Transportation
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 14 1991

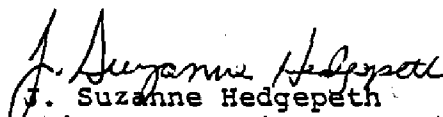
ATTENTION

FIRST REVISION TO DOT-E 10499

Enclosed is the FIRST Revision of DOT-E 10499.
Please note the modification(s) to Paragraph(s) 2 & 10

of the exemption.

Sincerely,


J. Suzanne Hedgepeth
Chief, Exemptions Branch
Office of Hazardous Materials
Transportation

Enclosure



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DOT-E 10499
(FIRST REVISION)

1. General Electric Company (GE Nuclear Energy), San Jose, California, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a radioactive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the placement of an occupied caboose carrying passengers next to the IF-300 cask car, placarded "RADIOACTIVE", and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on General Electric Company's application of December 13, 1990, submitted in accordance with 49 CFR 107.113, and a determination that is necessary to preclude serious economic loss.

3. HAZARDOUS MATERIALS (Descriptor and classed). Solid non-fissile irradiated hardware, classed as a radioactive material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Radioactive material, n.o.s.

5. REGULATION AFFECTED. 49 CFR 174.87 (a)(1) and 174.89.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. The prescribed packaging is a Model IF-300 cask. This packaging may be used only in compliance with Certificate of Compliance No. 9001, Revision 23 issued by the U.S. Nuclear Regulatory Commission.

b. General Electric (GE) and GE contract personnel must be covered by a radiation safety program administered by GE Nuclear Energy, San Jose, CA.

c. Each person occupying the caboose must be monitored for radiation exposure through the use of dosimetry devices as part of the radiation safety program required by paragraph 7.b. above.

8. SPECIAL PROVISIONS.

- a. The shipment may only be made south over the Conrail line between Nine Mile Point, Unit 2, near Oswego, New York and Syracuse, New York, a distance of approximately 50 miles.
- b. The movement between Nine Mile Point and Syracuse will be accomplished under "Special Train" (exclusive use) conditions.
- c. The Federal Railroad Administration (FRA) shall be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. May 1, 1991.

Issued at Washington, D.C.

J. Suzanne Hedgepeth
80/ Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 14 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.